

Review: The Limits of Liberal Justice

Reviewed Work(s): Justice as Impartiality by Brian Barry; The Morals of Modernity by Charles Larmore; Poetic Justice: The Literary Imagination and Public Life by Martha C. Nussbaum; Le Moine et le Philosophe: Le Bouddhisme Aujourd'hui by Jean-Francois Revel and Matthieu Ricard

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THE LIMITS OF LIBERAL JUSTICE

JUSTICE AS IMPARTIALITY by Brian Barry. Oxford: Clarendon, 1995. 323 pp.

THE MORALS OF MODERNITY by Charles Larmore. Cambridge: Cambridge University Press, 1996. 226 pp.

POETIC JUSTICE: THE LITERARY IMAGINATION AND PUBLIC LIFE by Martha C. Nussbaum. Boston: Beacon, 1995. 150 pp.

LE MOINE ET LE PHILOSOPHE: LE BOUDDHISME AUJOURD'HUI by Jean-Francois Revel and Matthieu Ricard. Paris: NiL editions, 1997. 405 pp.

More than 2 billion people tuned in to watch the ceremonies marking Hong Kong's handover to China on 1 July 1997, but most Hong Kongers were more concerned with the events of 4 June 1997. It was the eighth anniversary of the Tiananmen Square massacre, the day the aspirations for democratic reform in China were put down with brutal force. Thousands of Hong Kongers had come out every June 4 since then to commemorate the victims of the massacre—and to press for an official apology from the Beijing government—but this year was special. Many feared that the Chinese government would not allow such activities to proceed in the future, and there was also the feeling that Hong Kongers should let their future sovereign know that they were deeply committed to the political ideals of the May/June 1989 democracy movement. As it turns out, more than 40,000 Hong Kongers turned out for a moving candlelight vigil on the night of 4 June 1997, the largest number since 1989. I stayed home, however.

The reason I stayed home is that my two-year-old son Julien was suffering from a low-grade fever. My wife was out of town on a business trip, and while I could have left Julien with our housekeeper, I thought that he would feel better if I stayed with him. One colleague pointed out that my son would recover

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(which he did: he was fine the next day), that it was a once-in-a-lifetime chance to send a political message to the Chinese government, and that I should join him at Victoria park for the vigil. I agonized over the decision, but finally I chose to care for my son. I felt bad, thinking that I had put the special interests of my son ahead of my public duties. Did I make the wrong choice? The answer, of course, depends on one's moral theory.

From a traditional Confucian point of view, I did no wrong. Confucians believed that the family is the key to the good life and that individuals have a supreme duty to nurture their family bonds. Confucian theorists did not deny that obligations to the family should be complemented by responsibilities owed to friends and rulers, but in cases of conflict, it was felt that family duties should outweigh all other obligations. In fact, Confucius went so far as to argue that the care owed to elderly parents might even justify breaking the law:

The "Duke" of She addressed Master K'ung [Confucius] saying, In my country there was a man called Upright Kung. His father appropriated a sheep, and Kung bore witness against him. Master K'ung said, In my country the upright men are of quite another sort. A father will screen his son, and a son his father—which incidentally does involve a sort of uprightness.¹

Needless to say, this kind of proposal produced a counterreaction. The witty proponent of realpolitik Han Fei Zi, for example, pointed out that the "family obligations over all others" principle is incompatible with successful warfare:

There was a man of Lu who accompanied his sovereign to war. Three times he went into battle, and three times he ran away. When Confucius asked him for a reason, he replied, "I have an aged father and, if I should die, there would be no one to take care of him." Confucius, considering the man filial, recommended him and had him promoted to a post in the government. Thus we see that a man who is a filial son to his father may be a traitorous subject to his lord. . . . Confucius rewarded a man, and as a result the people of Lu thought of nothing of surrendering or running away in battle.²

Notwithstanding Han Fei's concerns, however, Confucian conceptions of the family have played an important role in justifying the limited extent of popular involvement in public affairs over the years. For one thing, the Chinese Communists had a point when they argued that Confucianism was incompatible with widespread public commitment to "revolutionary" ideals.

It is easy to oversimplify, but the opposite tendency has played a central role in Western ethics. Socrates neglected his children to concentrate on philosophizing and public service, and it was a short step from there to Plato's

proposal that the family should be abolished so that rulers could devote themselves wholly to the service of the community, unmoved by the distracting loyalties and affections of the family system. This too produced a counter-reaction—most notably, Aristotle's argument that removing the family, rather than ensuring impartial and equal concern for all citizens, will ensure that nobody cares strongly about anything—but it is difficult to find arguments in the Western canon that obligations to the family should have priority over public duties. Those who addressed the issue tended to explicitly argue in favor of the opposite: the eighteenth-century English utilitarian thinker William Godwin, who believed that only social utility could be justly employed to adjudicate between the competing claims of individuals, provided the famous example of someone being morally compelled to save a bishop from a burning palace instead of his valet (a being of less social worth than a bishop), even supposing that the valet had been the rescuer's brother or father. On this account, I should not have let the fact that my son was sick affect the decision to stay at home on the night of June 4. If attending the vigil for the victims of the Tiananmen massacre would have done more for human happiness, then I should have been out there with the others.³

But surely there's something wrong with both Confucian familism and "Western" impartiality. Family-based ethics could be employed to justify the complete neglect of public duties, whereas pure impartiality seems to leave no room at all for the cultivation of special ties to loved ones. Any decent moral theory should provide for support for both particularistic ties and impartial justice, ideally providing some guidance in cases of conflict. That is the task Brian Barry sets for himself in his book *Justice as Impartiality*.

THE PERSONAL VERSUS THE POLITICAL

The first thing to notice about Brian Barry's book is the misleading title. Contrary to initial expectations, Barry does not defend what he calls "first-order impartiality" (p. 13), or the requirement that our behavior in everyday life should not be motivated by private considerations or personal interests. Instead, what Barry means by impartiality refers to a test to be applied to the moral and legal rules of a society: the idea that principles and rules should be capable of forming the basis of free agreement among people seeking agreement on reasonable terms.⁴ The point here is to found justice on reasonable agreement between people who hold competing conceptions of the good by excluding information that might bias the process of deliberation about principles of justice. That was, of course, also the aim of John Rawls's original

position. Barry, however, is critical of Rawls's effort. Instead, he defends T. M. Scanlon's proposal for an alternative "original position": one in which well-informed people in a situation of equal power (guaranteed by each having a veto) seek to reach agreement with others who are similarly motivated on terms that cannot reasonably be rejected.

Most of Barry's book, however, is devoted to attacking the positions of other political philosophers rather than defending his own. Barry goes for the jugular, and he is utterly ruthless with his opponents. Not content with demolishing their argumentation, Barry also seems to impugn their integrity: Michael Walzer's "interpretative approach" is "tendentious" (p. 5), and his followers engage in "grotesque manoeuvres" to defend it (p. 6); the reader is warned not to enter David Gauthier's "morally pathological universe" (p. 42); Alasdair MacIntyre relies on "grossly unhistorical" claims to support his viewpoints (p. 126), and we should avoid falling victim to his "sleight of hand" (p. 130); Bernard Williams is accused of deploying "disingenuous" arguments (p. 221); and so on. Perhaps Barry's animus is related to the analytical method he relies on. Arguments are either true or false, with few shades of gray (put negatively, philosophy should not concern itself with arguments that lack a "reasonable prospect of closure" [p. 26]). Since Barry spends most of his time criticizing leading political philosophers whose intelligence and originality cannot be questioned, there must be a problem with their basic motivation. Thus we get the polemics.

To be fair, Barry is rarely pedantic and does not waste time on the details. He usually engages with the basic premises of his opponents to identify some perverse implications if they are really taken seriously. In that sense, Barry is a master practitioner of his craft. The more serious problem, perhaps, is that Barry's horizon tends to be limited to the rarefied world of Anglo-American analytical political philosophy. He makes useful distinctions for his colleagues, and that's about it. This is not necessarily a fatal flaw, but presumably a book about justice is meant to have some kind of political relevance. So one wishes that Barry applied his formidable critical powers to arguments that are more influential in public discourse.

This wish is finally granted in the book's final chapter. The chapter opens with a witty critique of Lawrence Kohlberg's moral theory. Kohlberg was an influential Harvard psychologist who developed a scale of moral development. The highest stage was termed "Kantian" or "Rawlsian," but Barry shows that it should instead be identified with "first-order impartiality," the doctrine that we should act without regard for one's own interests, situation, or relations with others. To support this view, Kohlberg relied on interpretations of case studies and examples, which Barry refutes with a combination

of common sense and arithmetics (in an appendix). For example, Barry suggests that the force of Kohlberg's most famous example—a man who steals a drug priced at ten times what it cost to make in order to save his dying wife from a disease—relies partly on “the magic of the pronoun ‘my,’” which is not supposed to influence behavior in the highest stage of moral thinking. If Kohlberg's example is reformulated according to the requirements of first-order impartiality, then a well-intentioned passer-by informed of the situation would be under an equal obligation to steal the drug. But if everyone acted in this way, the likely result would be that druggists would react to the constant threat of break-ins by ceasing to manufacture the drug and nobody would be able to get hold of it. After Barry is through with Kohlberg,⁵ it is difficult to understand why anyone could ever have taken his views so seriously. At the very least, Barry's chapter could serve as a useful antidote for the tens of thousands of students around the world who are exposed to Kohlberg's moral theory in social psychology classes.

Kohlberg's theory, of course, also produced a “feminist” counterreaction by Carol Gilligan and her followers. Gilligan argued that women tend to be more sensitive to an “ethic of care” (which parallels family-based Confucian ethics, except for the patriarchal element!) than to the demands of “first-order impartiality.”⁶ While Barry endorses the argument that an “ethic of care” should be incorporated within any satisfactory account of morality, he argues against the stronger position that impartiality should have no role whatsoever to play in everyday life. This time the target is Nel Noddings, who argued that Abraham, who was prepared to sacrifice his son for a principle, is a typical father, whereas Ceres, who condemned the earth to barrenness for the half of each year that her daughter was away in the Underworld, is a typical mother. On the second conception of morality, which Noddings seems to endorse, obligations can arise only out of relations with other people, and there is no room for the idea that some obligations are owed to strangers. But Barry points out that if women were really the bearers of “Cereal morality,” they would have to be excluded from all public responsibilities since it would be impossible to trust them to carry out public duties conscientiously.

Barry, in short, effectively makes the case that both of Gilligan's “different voices”—the “ethic of justice” and the “ethic of care”—are valid and should be incorporated within any satisfactory account of morality. This case has been made before, but rarely has it been defended so forcefully. Barry, however, is more ambitious. He claims to have refuted the notion that the “ethic of care,” the duties we owe to loved ones, can conflict with the “ethic of justice,” the duties we owe to human beings qua human beings. Life would be much easier if Barry is correct, but there are reasons to be skeptical.

Barry's argument is partly related to his belief that "it is [not] possible to find a plausible case in which there is a legitimate conflict" (p. 251) between justice and caring. But Barry's own examples do not always lead to clear-cut answers. Consider his discussion of Godwin's example. Barry recognizes that most people would rather save a close relative over a bishop and that this sort of particularity is perfectly legitimate. But he says that Godwin's argument is weakened by the fact that he chose a bishop who may not have been all that important. If the person to be saved is changed to a "man of action" who would be able to bring enormous benefits to the whole human race in the rest of his life, Godwin's solution to the case can be vindicated. For example, if the persons trapped in the burning building are President George Bush and Vice President Quayle, "a person of notorious stupidity, incompetence, and poor judgment" (p. 223) who would succeed Bush if he died, then even Quayle's close relatives ought to rescue the president since the president's death might have "catastrophic global implications." Not everyone will agree with Barry's conclusion, which seems to rest on the assumptions that Bush was significantly more competent than Quayle and that there are no checks whatsoever on the president's desire to carry out potentially catastrophic plans. More generally, I suspect that filling in Barry's underdescribed examples with more context will complicate matters, undermining Barry's claim to have discovered a solution to the apparent moral conflicts between the demands of particularity and impartiality.

In any case, Barry's argument is primarily justified with reference to his theory of justice as impartiality:

I believe that, if justice is interpreted on the lines I have advocated, there is no plausible case of a genuine moral dilemma involving a clash between justice and caring. The cases that are put up seem to me to fall into two groups: those where plausible rules of justice do not determine the choice, so it is perfectly legitimate to use a "caring" approach to decide what to do; and those where plausible rules of justice do determine the choice, so that it is a mistake to suppose that it is necessary to make a choice between the deliverances of two rival "ethics" that both bear on the case. (P. 250)

In other words, "justice as impartiality" comes first. Where it applies, it should have priority. Where it doesn't, then individuals can fulfill their particularistic duties. The problem, however, is that Barry's theory of justice, as it stands, cannot provide much practical guidance in our everyday and political lives. Justice as impartiality cannot "determine the choice" since it cannot usually tell us what to do.

Recall that Barry seeks to defend Scanlon's idea that justice is whatever emerges from an "original position" in which well-informed people in a situation of equal power seek to reach agreement with others who are

similarly motivated on terms that cannot reasonably be rejected. It is quite striking that in a book 266 pages long, only about 5 pages (section 11) are actually spent elaborating this idea (most of the book, as noted above, is spent criticizing the views of others, and most of these criticisms stand or fall independently of Barry's arguments for "justice as impartiality"). One might have thought that much turns on what is to count as "power" and "reasonable," but these key terms are left undefined. Let me focus on Barry's use of the term "reasonable."

Barry is critical of Rawls's original position for the familiar reason that it does not leave any room for actual bargaining among people who do not know what their ends are. There can be no disagreement between people faced with identical information and reasoning in an identical fashion. As Barry puts it, people in the original position are "clones" (p. 58). It turns out, however, that people in the "Scanlonian original position" tend to be a fairly homogeneous group as well.

As noted above, Barry does not define what he means by the word "reasonable," which plays the role of setting constraints on the type of argumentation allowed in the "Scanlonian original position." But scattered throughout the text are indications of the type of argumentation that Barry deems not to be "reasonable": religious "dogma" is not allowed (pp. 29, 30, 122-3, 162-3);⁷ cultural communities that claim special advantages—what "post-modernists" call the "politics of identity"—are not being reasonable (pp. 8, 115); those who reject the authority of expert opinions, arguments, and evidence are not guided by a norm of reasonableness (pp. 104-6); those who hold false beliefs should be excluded (p. 208); those who lack knowledge that other societies do things differently and that their own could feasibly be different in various ways don't count either (p. 107); even those who tend to be more impressed by their own experiences than by the testimony of others are suspect (p. 181). Who then qualifies as "reasonable"? It is only a slight exaggeration to say that this group is limited to the contributors whose arguments passed muster when Barry served as editor of *Ethics*.⁸ More pertinent, the type of argumentation that constitutes the messy world of politics in democratic societies—typically, crude invocation of economic self-interest and emotional appeals to "conceptions of the good" by moral crusaders pushing for victory in the political arena, not to mention symbolism, rhetoric, and so on—is defined out of existence at the very start of Barry's theory. This is not to suggest that theories of justice should try to justify all forms of actual political discourse, but such theories—if they're to be politically relevant—must at least come to grips with what motivates real political actors.⁹

To be fair, Barry does try to narrow the scope of his theory of justice. He recognizes, for example, that democratic politics includes issues that cannot

be resolved without giving priority to one conception of the good over others, but he says that justice as impartiality is a standard whose limits on decision making do not apply to all political questions but only to those involving what Rawls calls "constitutional essentials" (p. 144). The problem, however, is that Barry defends radical political proposals that go far beyond the usual list of "constitutional essentials." He argues, for example, that "in countries where systematic bias [in the sense of granting a disproportionate amount of influence to the wealthy and the privileged] has gone furthest (as in Britain) I believe that nothing short of making newspapers licensed public corporations (on the model of British television) can meet the case" (p. 108). Perhaps I missed something, but Barry seems to have moved a little too quickly from the requirement that people be well informed in the Scanlonian original position to the political implication that British newspapers should be subject to governmental control.¹⁰ This sudden shift between argumentation framed at a very high level of abstraction and shrill left-wing polemics is not atypical, but let us not pursue this matter.¹¹

Barry is on firmer ground when he shows how the less controversial set of "constitutional essentials" can be derived from "justice as impartiality." He shows that basic rights such as the freedom of speech, which bear equally on all members of a society, can be straightforwardly derived from the Scanlonian position since it invites us to ask why anybody would freely consent to being treated less well in respect of rights than anybody else in society. This should not be too controversial in liberal-democratic societies. The problem, however, is that there are disputes about the proper scope of the freedom of speech in areas where this right seems to conflict with other basic rights, such as the right not to be physically harmed. Some feminists, for example, argue that extending the freedom of speech to pornographers causes violence against women. They may be wrong (this argument seems to turn on empirical considerations), but it is difficult to see how "justice as impartiality" can provide any practical guidance. Barry does allow for the possibility that basic rights could be curtailed for some if the reasons are so compelling "that even the victims should not be able to reasonably withhold their consent" (p. 71), but in this case—assuming that pornographers' right to free speech conflicts with women's right not to be harmed—we have to decide between restricting the rights of competing sets of "victims." Is it more "reasonable" to expect that pornographers consent to the unequal basic rights, or should we expect female victims of rape and sexual violence to do so?

PAROCHIAL UNIVERSALISM

To summarize, my argument is that Barry's theory is insufficiently developed to shed much light on actual political disputes in Western liberal democracies. This leads to the thought that "justice as impartiality" may be most useful for authoritarian non-Western societies, where political reformers often seem to be fighting for basic rights that are taken for granted in Western societies. Barry himself boldly affirms the universality of his theory—"I continue to believe in the possibility of putting forward a universally valid case in favour of liberal egalitarian principles" (p. 3)—so it is worth exploring this possibility. Barry's universalism seems to derive from the belief that competing theories of justice "would have devastating implications for movements dedicated to securing human rights in countries where they are not respected and never have been" (p. 4). Let us evaluate this claim by focusing on two competing theories of justice: justice as mutual advantage and the interpretative approach to justice.

Justice as mutual advantage is the idea that people with different conceptions of the good should seek a set of ground rules that holds out to each person the prospect of doing better than any of them could expect from pursuing the good individually without constraints. This theory was made famous by Thomas Hobbes, who argued that since everybody gives absolute priority to avoiding violent death, it is in everyone's interest to agree to any arrangement that stands to minimize the chance of suffering violent death. The main problem with this theory, according to Barry, is that people will violate the rules agreed upon whenever it is in their self-interest to do so. If the "balance of power" changes, such that one party now finds itself in the position that it can do better in a situation with a different set of rules, then there is nothing stopping that party from violating the agreement. Thus, justice as mutual advantage is not stable.

Barry illustrates this point with the contemporary example of Bosnia. He writes that

the Muslims have protested at each of the proposed 'peace plans' that they are 'unjust and that they legitimise Serbian control of ethnically cleansed territories.' . . . However, since the only rationale of these proposals has been that of justice as mutual advantage, there is no way of saying that any proposal is unjust so long as it reflects the balance of military advantage. The inability of the formula to generate peace is also apparent: all the various cease-fires and agreements have broken down as soon as any of the parties has perceived

an advantage in violating its terms. In particular, the Serbian forces, analogously to the whites in the American west, had no incentive for keeping agreements that stabilized the *status quo* while they could see a prospect of further military gains. (Pp. 41b-42b)

These words were penned shortly before the 1995 Dayton accord, which ended the Bosnian war, and it was presumably too late to stop the presses for Barry to amend his words. It may seem unfair to attack Barry for his faulty predictive powers (how many of us can do better?), but I think his comments on the Bosnian war illustrate deeper theoretical failings.

The Dayton accord, which was negotiated with a group of leading thugs in Dayton, Ohio, does indeed exemplify justice as mutual advantage. The accord, while couched in idealistic rhetoric, had the effect of legitimizing Serbian control of some land that was conquered in the most brutal way imaginable. But it also stopped the killing.¹²

Let us imagine that a critic of justice as mutual advantage had been involved in the negotiations. He would veto any proposal that is justified by that theory, or perhaps any proposal that is not consistent with justice as impartiality.¹³ The likely outcome if this critic had been present at the Dayton negotiating table: no accord would have been signed, the fighting would have continued, and hundreds of thousands of lives would have been lost.¹⁴

The point I'm trying to make is that theories of justice are only persuasive to the extent that they can be usefully implemented in practice. Barry criticizes justice as mutual advantage on the grounds that it is not stable, but this criticism is persuasive only if there is a competing theory of justice that is more likely to produce stability. In the Bosnian context, it seems that justice as mutual advantage was the best theory available (given that rules of justice, as Barry notes, are meant to help a society "avoid conflict—on any scale from mutual frustration up to civil war" [p. 72]). More generally, what's feasible will vary from context to context, and philosophical purists need to recognize that there may not be one unique, universally applicable and eternally valid set of political principles.

But some people may still be left feeling squeamish about endorsing theories of justice that seem to legitimize gross abuses of human rights. Bosnians might have been condemned by a particularly unfortunate set of circumstances to endorse a less-than-perfect accord for the sake of securing social peace, but surely others can aspire for more. Basic rights are practicable in Western societies, so why not elsewhere? In China, for example, the risk that people will plunge into a "war of all against all" seems rather remote. It doesn't follow, however, that only "justice as impartiality" can play an important role in justifying basic rights in a Chinese context.

I would like to quote the first few lines from a recent paper by the political philosopher Joseph Chan:

There are at least two main intellectual approaches to justifying universal human rights. The first, and more traditional, approach is to show that there are some minimum but universal principles which can justify human rights to all reasonable persons. The second approach tries to seek consensus on human rights from within cultural perspectives. It encourages different cultures to justify human rights in their own terms and perspectives, in the hope that an "overlapping consensus" on the norms of human rights may emerge from self-searching exercises as well as common dialogue. The ecumenical approach seems to have some advantages. If successful, it would ground human rights on less alien sources, thus making them more receptive to the cultures which originally lacked the idea of human rights.¹⁵

Chan then goes on to test this approach by examining the case of Confucianism, arguing that key elements of Confucianism are compatible with the idea of human rights, though Confucians might have their own understandings about the justification, scope, and prioritization of human rights.¹⁶

In the context of Barry's book, Chan is a proponent of the "interpretative" approach: he aims to provide local justifications for human rights on the assumption that the struggle to promote human rights is more likely to be won if it is fought in ways that build on, rather than challenge, local cultural traditions. Why is Barry critical of this approach? One reason, according to Barry, is that this approach assumes that the world is composed "of different societies each of which has a distinct, homogeneous, and coherent set of beliefs" (p. 4).

But no one denies that societies are constituted by conflicting and changing sets of beliefs. The politically relevant point, however, is that some societies are strongly influenced by the dominant values of particular traditions, and it would be foolish for proponents of human rights to disregard this fact. Confucian values such as filial piety arguably still play an important role in China, for example, notwithstanding the best efforts of the Chinese Communists to extirpate such values.

The second defect of the interpretative approach, according to Barry, is "its tendency to exaggerate the incommensurability of the ideas prevalent in different societies" (p. 6). But "interpretivists" do allow for the possibility of consensus on human rights norms, so long as those involved in cross-cultural dialogue allow for disagreement on the ultimate justifications of these norms and possible variations in the legal institutions and practices by which enforcement is effected in different societies.¹⁷

The third reason is perhaps the most important. According to Barry, "the crucial difference between this method [i.e., the Scanlonian construction of the original position] and the 'interpretative' one is that I draw upon ordinary beliefs critically and selectively, employing a general theory of justice as a touchstone" (p. 10). But "interpretivists" also make critical use of ordinary beliefs. Typically, for example, they select beliefs that do not rest on obvious misconceptions (such as the belief that the earth is flat), that are not distorted by powerful interests (e.g., arguments for "Asian values" put forth by government officials that seem to be determined more by political requirements than by a desire truly to understand the relevant traditions), that are internally consistent, that better cohere with other cherished values, that serve as a guide for practice in the modern world, and so on. Depending on the tradition, some interpreters will also place relatively more value upon pronouncements contained in *The Book*.¹⁸ In short, both methods draw upon ordinary beliefs critically and selectively, though they may employ different "touchstones."

So what does distinguish Barry's method from the interpretative approach? One obvious difference is the level of abstraction at which the argument is being carried out. However, the most important distinguishing characteristic of Barry's approach—let us call it "parochial universalism"—is the attempt to put forward a universally valid theory of justice that draws only on the moral aspirations and political practices found in liberal Western societies.¹⁹ Barry's theory, for example, does not draw on anything worthwhile from the Chinese political tradition.²⁰ This should worry those concerned with promoting human rights in a Chinese context, for Barry's book can be seized upon as yet another arrogant attempt by Western liberals to push forward a "universal" theory that rides roughshod over the cultural particularities of non-Western societies. One cannot be certain that the "interpretative" approach will do more for human rights, but that's where I'd place my bets.

In his next book on justice, Barry promises to take up the question of how far and in what sense justice is a universal value. This work may help to answer some of my questions, and I look forward to reading it. Meanwhile, let us turn to a book that does take seriously the importance of historical context for a theory of justice.

GOOD PHILOSOPHY, BAD HISTORY

Charles Larmore opens his book *The Morals of Modernity* with a critique of analytical philosophy, the dominant approach to philosophy in the

English-speaking world for much of this century (until recently). Analytical philosophers were guided by the conviction that philosophy must distinguish itself from the empirical sciences. The aim was to analyze the “meaning” of key concepts, thus uncovering the necessary features of our experience and our ways of understanding the world. Applied to the area of ethics, this meant analyzing the meanings of such concepts as “the good,” meanings supposedly untouched by historical changes in our ideas about the moral life.²¹ Larmore criticizes this approach by invoking Quine’s famous argument that all beliefs are potentially modifiable in the light of experience, and he adds his own touch in a persuasive chapter on Leo Strauss where it is shown that Strauss’s aspiration to transcend our historical circumstances and look at the world from a standpoint of complete detachment inevitably ended up in “silence” (p. 66).

Philosophy, according to Larmore, must be informed by history, by an awareness of why we find ourselves where we do and why we face this or that philosophical problem. Our fundamental ways of understanding the world “must themselves be recognized as mutable and thus as historically contingent through and through. In reflecting upon them, philosophy can no longer sensibly aspire to stand above history. It must instead make clear the historical situation in which it proceeds” (p. 6). This means that our moral and political judgments cannot be justified “all the way down”: they must be justified with reference to a taken-for-granted “way of life.” But it doesn’t follow that we should doubt all our beliefs. The mere fact that we have a belief because of our historical context “is not a good reason to think that it is false, and so not a good reason to demand that it be justified” (p. 60). We need only doubt our beliefs if we have positive reasons for thinking that some belief of ours may be mistaken. Even then, we must continue to rely on our other existing beliefs to find a solution to this doubt and to discover the positive reasons that give rise to our doubt.²²

Larmore’s book is clear evidence that explicit recognition of historical contingency can widen, rather than foreclose, moral and intellectual horizons. He draws freely—and pertinently—from contemporary Anglo-American philosophy as well as Continental philosophy (in the original languages) to make his points. The views of famous thinkers as well as more obscure historical figures are discussed for the purpose of exposing the ways our dominant moral commitments have changed over the years. All this is done without sacrificing the clarity and rigor of Anglo-American political philosophy. No one, I suspect, can fail to learn something by reading Larmore’s book.

Of course, this doesn't mean that his argumentation is flawless. Let me begin with one minor criticism of Larmore's philosophical approach. The problem is that Larmore is still too complacent about traditional values. He argues that we need only worry about justifying a belief if we find positive reasons for putting this belief in doubt, which is fine, but he adds that "a good reason for doubting an existing belief is not the mere fact that we come upon somebody with grounds to reject it" (p. 63). This kind of view, if taken seriously, would have the effect of inhibiting dialogue between people (and cultures) with different moral commitments. Larmore himself emphasizes the norm of "rational dialogue" (pp. 134-6). But surely dialogue would be more productive if both parties did doubt contested beliefs during their mutual deliberations, at least for the purpose of leaving open the possibility of learning from each other's viewpoints. Nor is it just a question of what we *ought* to do. As a psychological reaction, it seems quite "normal" to doubt the authority of one's beliefs when one comes across somebody with a different outlook. Consider what Larmore says about modern etiquette: "Modern etiquette and modern morality both issue unconditional claims. They differ (and this may be all there is to their difference) in their importance for social life" (p. 39). Not many Western tourists, fortunately, fail to doubt the "unconditional" obligation to eat with forks and knives when they visit China!

The more serious problem lies with the *application* of Larmore's historically informed approach. Larmore is ambitious: he aims for nothing less than explaining the development of "the" modern moral identity, identifying its most distinctive feature, and drawing political conclusions therefrom. While he is careful to stress that he is referring to "shifts in emphasis" rather than "absolute breaks" with the past, Larmore's historical analysis leaves much to be desired. The first indication that there may be a problem comes in chapter 2, where the "modern process of secularization" (p. 41) is explained by reference to "the inner logic of Judeo-Christian monotheism" (p. 42). Larmore seems to think that ideas perform their magic untainted by economic transformations and power struggles in the real world. One is tempted to blame Hegel, but at least Hegel has the excuse of having come before Karl Marx.

In any case, let us turn more directly to Larmore's political philosophy. Larmore is a political liberal, and the "essential character" of liberalism is that of neutrality, or the idea that the state should be neutral between controversial ideas of the good life (p. 125). In effect, this means that "negative freedom," the freedom from undue government interference, is most relevant from a political point of view (p. 123). Why does Larmore draw this political conclusion? Because liberalism has taken to heart the crucial element of modern experience, which is "the realization that on the meaning of life reasonable people tend naturally to disagree with one another. We have come to

expect that in a free and open discussion about the fulfilled life, the human good, the nature of self-realization— notions essential to the virtue-centered conceptions of ancient ethics—the more we converse, the more we disagree, even with ourselves” (p. 12; see also chaps. 6, 7). Why did we come to this conclusion? Because, Larmore repeatedly emphasizes, bloody religious warfare in the seventeenth century taught us this lesson (pp. 12, 73, 122, 143, 144, 152, 212, 213).

I do not want to dispute the point that “the” modern moral identity has been shaped partly by the lesson learned from religious warfare in England more than three centuries ago. Larmore, however, wants to argue that this lesson is the single most important feature of “the” modern moral identity and hence that the political implication of state neutrality has priority over other political principles in cases of conflict. The problem, however, is that Larmore leaves out the lessons learned from historical experiences between the seventeenth century and the late twentieth century! Consider some of the more obvious omissions:

1. The development of representative democracy from the late eighteenth century onwards. The new emphasis on democracy emerged primarily as a response to the perceived injustices of colonial rule (in the United States) and feudal rule (in France and England). Larmore does note the fact that we live in liberal democracies, but he adds that “liberal freedoms set limits to democratic government, and the form it usually takes, majority rule. Nor is this ranking a mere makeshift. On the contrary, democracy is made subordinate to liberal principles precisely because the value of democratic institutions is held to lie chiefly, if not exclusively, in their being the best means for guaranteeing liberal freedoms” (p. 182). But democracy is much more than majority rule. It also includes such principles as transparency and accountability.²³ These principles have independent moral value, and Larmore gives us no reason for thinking that they should be subordinate to liberal freedoms in cases of conflict.
2. The development of social and economic rights from the late nineteenth century to the mid-twentieth century. This development was primarily a response to the socialist critique of exclusive focus on “bourgeois” rights and the economic crisis of the 1930s, which convinced large sections of the population that free-market capitalism needed to be constrained with public concern for the welfare of the “worst-off.” Hence, as Jeremy Waldron puts it, “it is now widely (though not universally) accepted that material needs generate moral imperatives which are as compelling as those related to democracy and civil liberty. If we want a catalogue of what people owe each other as a matter of moral priority, we should look not only at liberty but also to the elementary conditions of material well-being.”²⁴ Larmore gives us no reason for thinking that negative freedoms should have priority over “the right to eat.”
3. The development of feminism in the late twentieth century. This emerged primarily in response to the increasing need to integrate women in the workplace and “consciousness-raising” by feminist activists. It is now widely believed that women should have equal opportunities in education, work, and politics. To this end, feminist theorists challenge the sharp dichotomy between “the personal” and “the political” in

traditional liberal political theory. Yet Larmore's liberalism seems to rely on this very dichotomy.

Given the fact that Larmore ignores several important "lessons" that have shaped "the" modern moral identity, it is worth asking what may have drawn Larmore to his political conclusions. More precisely, why does Larmore attempt to defend the political principle of state neutrality? The reason is that he is responding to Anglo-American communitarian critics of liberalism in the 1980s. Communitarian theorists such as Michael Sandel, Charles Taylor, and Alasdair MacIntyre criticized liberal individualism on the grounds that it seemed to ignore the importance of tradition in our personal and social lives. Rather than respond, Larmore proposes to defend a version of liberalism that is not vulnerable to this criticism: "The task of liberal theory is to see how the principle of state neutrality can be justified without having to take sides in the dispute about individualism and tradition" (p. 132). This approach, Larmore believes, "shows the critics of modern individualism that they still have good reasons—and moral reasons, not just prudential ones—to affirm the value of a liberal political order. It shows that Romantics can also be liberals" (p. 146). Does Larmore succeed? Not quite. It is quite revealing that Larmore uses the terms "Romantic" and "communitarian" interchangeably, on the grounds that early nineteenth-century Romantic thinkers such as Herder and Wordsworth should be seen as expressing the same concerns as contemporary communitarian theorists (p. 129). It might well be the case that Romantics could have been persuaded by Larmore's argumentative strategy (though I doubt it). Contemporary communitarian theorists in the Western world, however, are not simply Romantics. More often than not, they are feminist communitarian democrats with a concern for the welfare of the "worst-off." And there is no reason to think that they will be persuaded to endorse a version of liberalism that downplays their other concerns!²⁵

But perhaps the problem lies even deeper. Both Barry and Larmore try to provide liberal justice with more intellectually defensible foundations, with the aim of "bringing around" those not initially inclined to endorse liberal views. The assumption seems to be that improving liberal theory—a theory of what we owe to human beings as such—will have the effect of expanding our moral horizons beyond concern for our "loved ones." But is the main problem really with liberal theory, or is it with closing the gap between liberal theory and the real world? There are many "liberals" out there—even the nastiest governments pay lip service to basic human rights²⁶—but few are willing to actually do something to help the "worst off." Rather than add yet more refinements to liberal theory, one might have thought that political theorists could do more good by suggesting ways that individuals can be made to

identify with those most in need of human rights: vulnerable groups, oppressed individuals, torture victims in distant lands, and so on. Yet Barry and Larmore completely neglect the question of describing the sorts of psychological mechanisms that will motivate individuals to concern themselves with the fate of the “worst off.” Let us then turn to another work that takes more seriously the question of motivating liberal justice in the contemporary world.

MOTIVATING THE FEW

Martha Nussbaum's book *Poetic Justice* is yet another contrast to the macho, self-contained world of Anglo-American analytical philosophy. The book, which is written for a more general audience of lawyers, policy makers, and concerned citizens, is an explicit attempt to make an impact on public life. Nussbaum identifies her targets, but her aim is not to destroy them. Rather, she tries to gently bring them along to her point of view: *Poetic Justice* is even dedicated to her chief ideological opponent, the utilitarian legal theorist Richard Posner! Instead of relying on imaginary scenarios that bear no relation to reality, Nussbaum calls on her own experience as a teacher to illustrate her points. All this makes for an engaging book.

Like most liberal theorists, Nussbaum defends an ethic of impartial respect for human dignity in public life. However, she does not think that relying on abstract reasoning to defend the principle of impartiality will be sufficient. This principle “will fail to engage real human beings unless they are made capable of entering imaginatively into the lives of distant others and to have emotions related to that participation” (p. xvi). Nussbaum makes the case that social “realist” novels in particular hold special promise for motivating impartial concern, hence that we should draw on novels “not only in our homes and schools, shaping the perceptions of children, but also in our schools of public policy and development studies, and in our government offices and courts, and even in our law schools—wherever the public imagination is shaped and nourished—as essential parts of an education for public rationality” (p. 2).

On the face of it, it may seem like a purely strategic matter of finding the best means of persuading people to act in accordance with the dictates of impartiality. But Nussbaum also claims that novel-reading “provides insights that should play a role (though not as uncriticized foundations) in the construction of an adequate moral and political theory” (p. 12). It is hard to evaluate this claim, since Nussbaum does not really spell out her political theory in

Poetic Justice.²⁷ However, there is no evidence in this book that the literary works discussed by Nussbaum played a role in shaping her political principles. Quite the opposite, in fact. She draws on novels to make her points except when they happen to deviate from contemporary left-liberal sensibilities,²⁸ which makes it difficult to entirely dispel the suspicion that Nussbaum may be “reading” novels through politically correct lenses.

In any case, Nussbaum spends most of her time arguing for the claim that novel-reading “develops moral capacities without which citizens will not succeed in making reality out of the normative conclusions of any moral or political theory, however excellent” (p. 12). Here Nussbaum is more successful, though she overstates her case. The main problem is that she ignores other “tools” for developing the moral capacities that increase the likelihood of realizing justice for strangers. Let me develop this criticism by proposing several different “tools” that may do better at achieving the “strategic” benefits of “realist” novels.

First, Nussbaum suggests that people may not be motivated to “make reality” out of liberal justice because they lack *knowledge* about injustices in different places. For example, the almost entirely White group of law students in Nussbaum’s class at the University of Chicago lacked knowledge about the impoverished lives of African Americans living in inner-city slums less than fifty yards from the law school. Thus “we read Wright’s *Native Son*. Every Chicago place name marked a location we knew—though with respect to some of those locations almost all of us were in the position of Wright’s Mary Dalton, when she says to Bigger Thomas that she has no idea how people live ten blocks away from her” (p. xiv). By drawing attention to the special and terrible disadvantages of particular African American individuals, the novel may cause the White reader to develop a better understanding of “what it is like to live the other side of ‘the line’ ” (p. 93). As well, the White reader may come to identify with characters whose lives “have been deformed by racial hatred and its institutional expression” (p. 94). It is difficult to deny that reading *Native Son* can produce this experience, but one wonders if Nussbaum may have misdiagnosed the problem. Most educated Americans (i.e., those inclined to read Great Novels) are probably aware of the fact that African Americans in inner cities often lead impoverished lives and that the legacy of institutionalized racism plays a role in explaining their current predicament (though admittedly the University of Chicago has produced its fair share of nutty libertarians who argue otherwise). The debate, however, is over the best means of improving their lives: should the government promote affirmative action, “enterprise zones,” or can nothing be done from the outside? This sort of question cannot be resolved without the aid of social science. The debate,

in other words, is primarily empirical rather than moral, and "realist" novels may not be all that relevant for this purpose.

Of course, "realist" novels may in other cases play an important role in raising popular consciousness with respect to a particular injustice. One example that comes to mind is Sue Sumii's landmark 1958 novel *The River with No Bridge*, which explored the humiliations endured by outcasts in Japan known as *burakumin*. Sumii described the traumas of a burakumin character so vividly that she almost single-handedly helped change attitudes toward Japan's "untouchables." In open democratic societies, however, such cases of "unknown" injustices are few and far between. Perhaps novels can play an important role in bringing to light injustices in distant lands, but other "tools" such as Hollywood films on the plight of Tibetans²⁹ and Amnesty International reports on political dissidents are probably more effective.

The second "strategic" function of "realist" novels lies in their capacity to "normalize" victims of injustices. Group hatred is often founded on crude stereotypes that exaggerate the differences between "us" and "them," and novel-reading can break down such stereotypes by portraying "others" who are, "deep down," more like "us." The reader may thus come to identify and sympathize with victims who had previously been treated as outcasts. Nussbaum supports this point with the example of E. M. Forster's *Maurice*, which tells the story of a boring English stockbroker with homosexual tendencies. The "lesson" of this novel is that average people in a homophobic society can be "forced into a situation of repression, fear, and guilt. . . . Readers are led to recognize that Maurice is someone they might know, someone whose desires are not alarming or dangerous. He wants many of the same things heterosexuals want" (p. 97). The first thing that came to mind when I read this is that many people (including myself) will have come across *Maurice* the movie without having read the novel, which suggests once again that Nussbaum may be emphasizing the wrong "tool."³⁰ In the same vein, it is noteworthy that Vice President Al Gore recently praised the television show *Ellen* as promoting a more open attitude toward gay people.³¹ Nussbaum agonizes over the question of whether Mahler's symphonies and Sophocles' *Philoctetes* can shape human emotions and aspirations in the "right" way, but she does not even mention the potential social impact of television!

The third "strategic" function of "realist" novels lies in their capacity to change the reader's will. People may know about the victims of injustice and they may also sympathize with their plight, but they may still lack the *desire* to do something about it, particularly if action entails a certain degree of self-sacrifice. Nussbaum draws on Walt Whitman to make the point that lyric poetry (if it has a narrative structure similar to "realist" novels) can bring about "the ability to imagine vividly, and then to assess judiciously, another

person's pain, to participate in it and then to ask about its significance[; it] is a powerful way of learning what the human facts are and of acquiring a motivation to alter them" (p. 91). Once again, one can question the effectiveness of Nussbaum's proposed strategy: how likely is it that Walt Whitman's poetry will give the reader a desire to actually do something about this or that contemporary injustice? If the task is to give people a burning desire to work for a political cause, a segment on *60 Minutes* is more likely to do the trick.

In short, Nussbaum overestimates the (actual and potential) political importance of "realist" novels. Novel-reading per se cannot usually do all (or most) of the "psychological" work of motivating concern for the plight of strangers.³² Perhaps the deepest problem is that Nussbaum—and this may be a problem with liberal theory more generally—ignores the psychological importance of religion. Let us turn to a work that does confront this issue.

BACK TO "FIRST-ORDER" IMPARTIALITY

*Le moine et le philosophe*³³ (The Monk and the Philosopher) is a dialogue between the French philosopher Jean-Francois Revel and the Buddhist monk Matthieu Ricard. Revel, who has recently been elected to the Académie Française, is the French equivalent of Isaiah Berlin. He established himself as France's leading critic of totalitarian ideologies, and his best-known book is *Ni Marx ni Jesus* (Neither Marx Nor Jesus), which is still a compulsory text for French high school students. Ricard is the French interpreter for the Dalai Lama who has lived in India and Nepal for over a quarter-century. Most of the dialogue, which took place at an inn in the mountains above Katmandu, consists of Revel's relentless interrogation and Ricard's patient responses. Ricard is an articulate spokesman for Buddhism, and he even makes such theories as reincarnation seem plausible. Toward the end, Revel himself concedes that he has learned much from the discussion, although he doesn't budge from his atheism. One may wonder why a secular liberal philosopher would spend so much time trying to understand a nonmainstream religion (the book is more than 400 pages long), and the explanation is that Revel is Ricard's father. The result is a fascinating combination: a genuine "clash of civilizations" informed by mutual love.

Although Revel and Ricard had remained close over the years, they never discussed the finer points of Buddhist theory until a French editor suggested the idea. The dialogue begins with an account of why Ricard abandoned a promising career as a molecular biologist at France's most prestigious scientific institute (the Pasteur Institute) to take up a full-time "career" as a

Buddhist monk at the age of twenty-six. Revel, who cannot hide his disappointment, nonetheless comes to understand that this “career move” may not be as drastic as it seems: Ricard explains that he applies scientific rigor to the study of Tibetan language and culture. Of course the main reason for Ricard’s decision is that he became convinced of the truth of Buddhist doctrines, and he tries to make his father understand this as well. He relies on “rational” argumentation to make his points, but these are frequently supported with beautiful metaphors and examples from his own spiritual experience. The erudite Revel often responds with telling criticisms, but he also tries to close the “cultural” gap by showing that Buddhism shares many similarities with Western philosophies and religions. There is much food for thought in this book, but I will confine myself to a brief discussion on Buddhist ethics.

In his concluding speech, Revel states that he is deeply impressed by Buddhist ethics. Contrary to what he had previously thought, Buddhism calls for an *engagé* form of impartial love. The whole point of meditation, which involves a period of withdrawal from the social world, is actually to prepare the individual psychologically for an active role in helping to alleviate the suffering of others. While he remains skeptical about Buddhist metaphysics, Revel says that he is prepared, on “pragmatic” grounds, to endorse Buddhist ethics.

The curious part, which Revel fails to note, is that Buddhists endorse “first-order” impartiality, or impartiality as a ruling principle for everyday life. This may not be purely accidental: Revel may have come to the realization that the psychological “road” to motivating the kind of “public” impartiality endorsed by liberal theorists—impartiality in the sense of a test to be applied to the moral and legal rules of society rather than to interpersonal relationships—involves a wholesale spiritual transformation that dissolves particularistic attachments, which can only be achieved through the rigorous application of such “techniques” as meditation, chanting, and prayer.³⁴ But we are still left with the criticism of “first-order” impartiality, which does not leave any room for the moral relevance of special ties to loved ones. There is something strange—or perhaps I should say frighteningly cold—about a son who informs his father that “true love” (p. 232) must be completely disinterested and untied to particular beings, as though their own relationship does not have any special value.³⁵ The problem, in other words, is that motivating “second-order” impartiality cannot readily be done without violating our commitment to moral particularity. So let me conclude this essay with the observation that the leading liberal theorists of our day—more than a decade and a half after Michael Sandel made similar criticisms³⁶—have yet to make a politically realistic, historically grounded, and psychologically compelling case for a theory of justice that accounts for both the “public” obligations we

owe to strangers and the particularistic obligations owed to loved ones and provides some guidance in cases of conflict.

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NOTES

1. *The Analects of Confucius*, trans. Arthur Waley (London: Allen & Unwin, 1938), Book XIII.18.

2. Han Fei Zi, *Basic Writings*, trans. Burton Watson (New York: Columbia University Press, 1964), 106.

3. A defender of classical utilitarianism might reply that my presence at the vigil would not have made any real difference and that I contributed more to human happiness by caring for my child that evening. Let me then offer a more challenging example. President Bill Clinton, it is said, used to help his daughter Chelsea with her homework on occasion. Surely Clinton could have done more for human happiness by concentrating exclusively on his public duties, but does this mean he was being unjust?

4. Barry's theory of justice as impartiality converges in many respects with what Amy Gutmann and Dennis Thompson call "reciprocity" (see Gutmann and Thompson, *Democracy and Disagreement* [Cambridge, MA: Harvard University Press, 1996], 373, n. 1). Barry uses the term "reciprocity" to refer to a hybrid theory that is closer to justice as mutual advantage, but in my view he could have avoided much confusion by adopting Gutmann and Thompson's terminology (who themselves draw on Rawls and Scanlon's use of the term).

5. Barry cannot resist splicing his criticisms of Kohlberg's argumentation with sarcastic asides (e.g., "Kohlberg makes it quite clear that he wants to be understood as putting forward the interpretation that gives it maximum implausibility" [p. 236]), which may not be in the best of taste given that the deceased Kohlberg is no longer in a position to defend himself (assuming that reincarnation theory is false, a point that is challenged in *Le Moine et Le Philosophe*). As a reader, however, I could not resist the temptation to laugh out loud on several occasions.

6. Barry notes that Gilligan has now repudiated the claim that support for "first-order impartiality" is greater among males than females (pp. 247-8).

7. On the other hand, those who feel seriously discriminated by the advantages of establishment enjoyed by the Church of England are not being reasonable (p. 165).

8. Needless to say, I do not mean to criticize Barry's performance as the editor of *Ethics*. My point is that Barry seems to think that the same sorts of ideas about what constitutes "rigorous" argumentation in Anglo-American political philosophy should also set the boundaries for "reasonable" political debate about "constitutional essentials" in modern democratic societies.

9. Barry himself argues that a theory of justice should answer three questions: what is the motive (are the motives) for behaving justly? what is the criterion (are the criteria) for a just set of rules? and how are the answers to the first two questions connected (p. 46)? It is quite striking that he has so little to say about the first question about finding motivations in real people for following the rules of justice (on p. 115, he says, "how strong the desire to behave justly actually is, when it comes into competition with other desires, I leave open. I claim only to tell you what justice is; what you do about it, if you believe me, is up to you").

10. Personally, I was impressed by the range of views displayed in the United Kingdom's "quality papers" during my time as a graduate student, certainly compared to the constraints set on "legitimate" opinion by the United States two national "quality" newspapers, *The New York Times* and *The Washington Post*.

11. Things may improve in Barry's next book on justice, where he promises to develop some principles of justice within the framework of "justice as impartiality" and to explore some of the problems that arise in applying them. Barry confesses that he had originally planned to do this in the current book (p. x), which is grounds for pessimism.

12. For the moment: I do not want to discount the grim possibility that the warring sides will be back at it by the time this essay is in print. But even then, one could respond that at least the accord stopped the fighting for a period of three years, which is more than would have been accomplished if one of the parties had rejected any accord that appealed to justice as mutual advantage.

13. I do not mean to imply that Barry himself would adopt this strategy. In a peculiar footnote that seems to take back all that he had earlier said in defense of liberal universalism, he concedes that liberal democracy depends on certain social conditions and that "in the absence of these conditions some kind of authoritarian regime is in the long run inevitable to avoid anarchy or civil war" (p. 88b).

14. Barry also discusses the example of India since Independence, and he argues that "millions of lives" (p. 39) may be lost as a result of cynical accommodation to justice as mutual advantage. I do not know enough about Indian history to refute this claim, but in any case it would be foolish to deny that justice as mutual advantage can have disastrous consequences. Sometimes, however, it can have the effect of saving lives, and that is the point: one should refrain from firm judgments regarding this theory prior to detailed information about the context.

15. See Joseph Chan, "A Confucian Perspective on Human Rights," in *The East Asian Challenge for Human Rights*, ed. Joanne Bauer and Daniel A. Bell (New York: Cambridge University Press, forthcoming).

16. The point here is that "cultural interpretation" is not just a strategic matter of finding local resources for the promotion of human rights: it may be equally important to recognize the possibility that in certain areas, non-Western traditions may justifiably differ from "international" human rights norms and to suggest ways in which those traditions can contribute to the international discourse on human rights, changing it from what it is today (see Daniel A. Bell, *East Meets West: Human Rights and Democracy in Pacific Asia*, forthcoming, chap.1).

17. See Charles Taylor, "Conditions of an Unforced Consensus on Human Rights," in *The East Asian Challenge*, ed. Bauer and Bell.

18. Adherents of Islam, for example, must use the Qur'an as a reference point for their interpretations. One example is Norani Othman, a founding member of the group Sisters of Islam in Malaysia. Othman argues that while Islam has often been used to justify patriarchal practices in Asia and elsewhere, what is done in the name of Islam today often contravenes Islam's central ideas and animating principles. Othman explicitly appeals to the Qur'anic notion of common human ontology, *fitrah*, which supports arguments for gender equality and the rights of women, as opposed to the "transitory and contingent texts [that] enunciate specific rules or guidelines for Muslims" (Norani Othman, "Grounding Human Rights Arguments in Non-Western Culture: Shari'a and the Citizenship Rights of Women in a Modern Islamic Nation-State," in *The East Asian Challenge*, ed. Bauer and Bell).

19. It is difficult to understand why Barry, who seems to endorse Rawls's notion of "reflective equilibrium" (p. 55), should be so keen to affirm the universality of a theory that only draws on the "considered judgments about justice" from Western liberal societies.

20. Barry's discussion of "things Chinese" is confined to brief criticisms of the Cultural Revolution and the traditional practice of foot-binding (pp. 206, 209d). One might consider an analogy from the "other side": a Chinese intellectual who proposes a universal theory of justice that completely ignores the history of Western societies, except for brief criticisms of imperialism and slavery.

21. It is worth noting that Brian Barry is not, strictly speaking, an analytical philosopher, since he seems to recognize that a theory of justice must be anchored in substantive moral considerations (see, e.g., pp. 54-5). But on the other hand, he seems to think that his theory of justice has rendered obsolete the need to engage in comparative and historical analysis (except perhaps for the "strategic" purpose of getting "them" to be like "us").

22. Larmore seeks to avoid the possible implication that morality is nothing but the expression of individual attitudes by arguing for the existence of metaphysically real moral "forms" (see chap. 5, which concludes "Basically, Plato was right" [p. 116]). I do not wish to comment on this aspect of Larmore's work, except to point out that there are other possibilities that he does not consider (see Daniel Weinstock's review of Larmore's book "Modernité et morale" in the *Journal of Philosophy* [January 1996]:43-4).

23. The most systematic presentation and defense of democratic ideals is Gutmann and Thompson's *Democracy and Disagreement*. It is perhaps not surprising that Gutmann and Thompson draw a very different conclusion from the "fact" of moral disagreement in modern societies: whereas Larmore claims that "the more we converse, the more we disagree" (p. 12) and hence that people who disagree should search for neutral grounds and refrain from publicly professing beliefs that others reject, Gutmann and Thompson believe that people who disagree morally should continue to converse, searching for common grounds until they are able to reach mutually acceptable decisions (pp. 1, 377, n. 43). Both may be right: sometimes it's a good idea to continue a moral conversation, and sometimes it isn't (for examples of the latter, see my review of Gutmann and Thompson's book in the *Times Literary Supplement*, 17 January 1997, p. 25). But it is worth pointing out that retreat to neutral grounds is not the only option when moral conversation fails: sometimes, for example, justice as mutual advantage may be the best feasible solution (see my discussion of the Dayton accord above).

24. Jeremy Waldron, *Nonsense upon Stilts?* (London: Methuen, 1987), 157.

25. Of course, this is not to imply that contemporary communitarians will not endorse negative freedoms. Few in fact question the importance of basic civil and political rights (except perhaps for Alasdair MacIntyre, who seems less concerned with devising theories that are relevant for the modern world). The question is whether these freedoms should necessarily have priority over other pressing moral commitments in cases of conflicts.

26. See, for example, Barbara Crossette, "Incredibility at the UN: Forget What I Do, World; Listen to What I Say," *The New York Times*, 29 October 1995, p. E7.

27. Nussbaum writes that "this book lies at the intersection of several more technical philosophical projects in which I am currently engaged" (p. xviii), which will presumably spell out her moral and political principles in greater depth.

28. For example, Nussbaum writes "It is obvious that literary works can distort the world for their readers in these two ways. They can present historical and scientific fact falsely, as Dickens to a great extent falsely depicts the labor union movement, and as many novelists present a distorted picture of the capacities of women or religious and racial minorities. They can also misrepresent the importance of various types of suffering or harm, leading us to think them either graver or lighter than they really are. Thus Dickens suggests that workers will flourish if only they are diverted and given some leisure time; he does not rate high enough the harm involved in

class hierarchy itself" (pp. 75-6). This kind of passage could have been written by a "socialist realist" literary critic in Stalin's Soviet Union.

29. Moreover, these "tools" need not be as straightforwardly didactic as Nussbaum seems to think. Luis Bunuel's film *Land without Bread* depicted the lives of the rural poor in Franco's Spain, and it was banned for precisely this reason. The narrator of this film, however, spoke in the tone of a patronizing nineteenth-century anthropologist commenting on the "backwards" habits of his "subjects." The film was offensive, disturbing, and wickedly funny: just the sort of mixed message one would expect from a great artist.

30. The second thing that came to mind was that Nussbaum may be working with an impoverished conception of impartial respect for human dignity (no doubt we will respect those who are like us, but what about those who "really" are different?), but this is not the place to develop this criticism.

31. Mr. Gore said that "when the character Ellen 'came out,' millions of Americans were forced to look at sexual orientation in a more open light" (quoted in *The International Herald Tribune*, 20 October 1997, p. 3). I have been informed, however, that this show's ratings are supposed to have dropped since Ellen "came out."

32. There is one area where literary interpretation can be downright harmful if used for public purposes (as opposed to simply being insufficient as a means for achieving desired public goals). Nussbaum draws an analogy between literary interpretation and legal reasoning: both involve judgments based on reasons that "meet a standard of public articulability and principled consistency" (p. 87) as well as an understanding of the suffering of the individuals involved. This is fine as an account of the criteria that should guide judges when they decide cases, but the question is whether "literary judges" (p. 86) should be bound by the same criteria. Novel readers, it seems to me, do not have to be guided by a "search for a human good that we are trying to bring about in and for the human community" (pp. 83-4), nor is it necessarily the case that "what we are after is not just a view of moral education that makes sense of our personal experience, but one that we can defend to others and support along with others with whom we wish to live in community" (p. 84). As a counterexample, I am reminded of a graduate friend of mine who would entertain us at dinnertime with imaginative and unorthodox literary interpretations. He was only half-serious most of the time, but he never failed to provoke lively discussion. This friend, who has since found a job as a "postmodern" literary critic, once confessed that his interpretations were guided by the principle that he'd "rather be wrong than boring." Not everyone will agree that literary interpretation should be guided by this principle, but there is room for debate. On the other hand, it would be the height of irresponsibility for a judge to decide cases on this basis!

33. An English translation is due out soon.

34. It is also worth noting, that Buddhists do not endorse the end-goal of "second-order" impartiality in the sense of a political principle of state neutrality between conceptions of the good. Ricard makes it plain that the Buddhist state would be founded on a "thick" conception of the good, namely, Buddhist ideals. For example, he criticizes "Western" anthropocentric conceptions of human rights on the grounds that they neglect environmental concerns and animal "rights":

The Dalai-Lama speaks of non-violence, not just concerning humans, but also with regards to nature. In Bhutan, fishing and hunting is banned on a national scale, which is a good example of how Buddhist ideals might work at the level of society. A Buddhist state would not hesitate for one moment to ban the use of forty kilometer long nets that kill fish

as well as turtles and dolphins and ravage marine biology. All these heresies with regards to the environment are linked to the desire for gain, and to the fact that we arrogate onto ourselves the right to kill an incalculable number of animals, just because we have the power to do so. (Pp. 221-2; my translation)

This example also points to a more general problem with "second-order" impartiality: sometimes it is impossible to avoid taking sides in a dispute. In this case, either the state allows hunting and fishing, which would displease Buddhists, or the state bans those "sports" (along, presumably, with a whole economic infrastructure designed to satisfy the needs of nonvegetarians), which would displease non-Buddhists. There is no "neutral" higher ground that would allow one to settle this dispute in a "reasonable" way.

35. Confronted with this criticism, Ricard may be forced to admit that his tie to his father is special, but he cannot do this without challenging the Buddhist commitment to "first-order impartiality," which does not allow for "enlightened" individuals to give "more" love to particular individuals.

36. Michael Sandel, *Liberalism and the Limits of Justice* (Cambridge: Cambridge University Press, 1981).

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